



**Registration of a Charge**

Company name: **ALPHA FMC GROUP LIMITED**

Company number: **08506571**



X50LN3VT

Received for Electronic Filing: **12/02/2016**

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**Details of Charge**

Date of creation: **03/02/2016**

Charge code: **0850 6571 0004**

Persons entitled: **BEECHBROOK MEZZANINE II JERSEY LIMITED (AS MEZZANINE SECURITY AGENT)**

Brief description: **TRADEMARK: ALPHA APPLICATION/ REGISTRATION NUMBER: 1023507 COUNTRY: EUROPE APPLICANT/OWNER: ALPHA FINANCIAL MARKETS CONSULTING LIMITED CLASSES: 9, 35, 36, 42 FILING DATE: 17/08/2009 REGISTRATION DATE: 17/08/2009 TRADEMARK: ALPHA APPLICATION/ REGISTRATION NUMBER: 4000450 COUNTRY: USA APPLICANT/OWNER: ALPHA FINANCIAL MARKETS CONSULTING LIMITED CLASSES: 9, 35, 36, 42 FILING DATE: 17/08/2009 REGISTRATION DATE: 17/08/2009 AND ADDITIONAL INTELLECTUAL PROPERTY. PLEASE SEE DEED FOR FURTHER DETAILS**

**Contains fixed charge(s).**

**Contains floating charge(s) (floating charge covers all the property or undertaking of the company).**

**Contains negative pledge.**

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**Authentication of Form**

This form was authorised by: **a person with an interest in the registration of the charge.**

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## Authentication of Instrument

Certification statement: **I CERTIFY THAT SAVE FOR MATERIAL REDACTED PURSUANT TO S. 859G OF THE COMPANIES ACT 2006 THE ELECTRONIC COPY INSTRUMENT DELIVERED AS PART OF THIS APPLICATION FOR REGISTRATION IS A CORRECT COPY OF THE ORIGINAL INSTRUMENT.**

Certified by: **PINSENT MASONS LLP**



## **CERTIFICATE OF THE REGISTRATION OF A CHARGE**

Company number: 8506571

Charge code: 0850 6571 0004

The Registrar of Companies for England and Wales hereby certifies that a charge dated 3rd February 2016 and created by ALPHA FMC GROUP LIMITED was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 12th February 2016 .

Given at Companies House, Cardiff on 15th February 2016

The above information was communicated by electronic means and authenticated by the Registrar of Companies under section 1115 of the Companies Act 2006



**Companies House**



THE OFFICIAL SEAL OF THE  
REGISTRAR OF COMPANIES

**THIS ACCESSION DEED** is made on 3 February 2016

**BETWEEN**

- (1) **EACH COMPANY LISTED IN SCHEDULE 1** (each an "**Acceding Company**");
- (2) **CAELIUS MIDCO 2 LIMITED**, a company incorporated in England and Wales with registered number 09963816 (the "**Parent**"); and
- (3) **BEECHBROOK MEZZANINE II JERSEY LIMITED** (as Mezzanine Security Agent for the Mezzanine Secured Parties (as defined below)) (the "**Mezzanine Security Agent**").

## **BACKGROUND**

This Accession Deed is supplemental to a debenture dated 3 February 2016 and made between (1) the Chargors named in it and (2) the Mezzanine Security Agent (the "**Mezzanine Debenture**").

## **IT IS AGREED:**

### **1. DEFINITIONS AND INTERPRETATION**

#### **(a) Definitions**

Terms defined in, or construed for the purposes of, the Mezzanine Debenture have the same meanings when used in this Accession Deed including the recital to this Accession Deed (unless otherwise defined in this Accession Deed).

#### **(b) Construction**

Clause 1.2 (*Interpretation*) of the Mezzanine Debenture applies with any necessary changes to this Accession Deed as if it were set out in full in this Accession Deed.

### **2. ACCESSION OF THE ACCEDING COMPANY**

#### **(a) Accession**

Each Acceding Company:

- (i) unconditionally and irrevocably undertakes to and agrees with the Mezzanine Security Agent to observe and be bound by the Mezzanine Debenture; and
- (ii) creates and grants at the date of this Deed the charges, mortgages, assignments and other security which are stated to be created or granted by the Mezzanine Debenture,

as if it had been an original party to the Mezzanine Debenture as one of the Chargors.

(b) **Covenant to pay**

Without prejudice to the generality of clause 2(a) (*Accession*), each Acceding Company (jointly and severally with the other Chargors and each other Acceding Company), covenants in the terms set out in clause 2 (Covenant to pay) of the Mezzanine Debenture.

(c) **Charge and assignment**

Without prejudice to the generality of clause 2(a) (*Accession*) subject to the terms of the Intercreditor Agreement, each Acceding Company with full title guarantee (on the terms set out in clause 3.1 (*Nature of security*) of the Mezzanine Debenture, charges and assigns (and agrees to charge and assign) to the Mezzanine Security Agent for the payment and discharge of the Secured Obligations, all its right, title and interest in and to the property, assets and undertaking owned by it or in which it has an interest, on the terms set out in clauses 3 (*Grant of security*), 4 (*Fixed security*) and 5 (*Floating charge*) of the Mezzanine Debenture including (without limiting the generality of the foregoing):

- (i) by way of first legal mortgage all the freehold and leasehold Real Property (if any) vested in or charged to the Acceding Company (including, without limitation, the property specified against its name in part 1 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any));
- (ii) by way of first fixed charge:
  - (A) all the Charged Securities (including, without limitation, those specified against its name in part 2 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)); together with
  - (B) all Related Rights from time to time accruing to them;
- (iii) by way of first fixed charge each of its Collection Accounts and its other accounts with any bank or financial institution at any time (including, without limitation, those specified against its name in part 3 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*)) and all monies at any time standing to the credit of such accounts;
- (iv) by way of first fixed charge all Intellectual Property (including, without limitation, the Intellectual Property specified against its name in part 4 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any));
- (v) by way of absolute assignment the Relevant Contracts (including, without limitation, those specified against its name in part 5 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)), all rights and remedies in connection with the Relevant Contracts and all proceeds and claims arising from them; and

- (vi) by way of absolute assignment the Insurances (including, without limitation, those specified against its name in part 6 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) (if any)), all claims under the Insurances and all proceeds of the Insurances.

**(d) Representations**

Each Acceding Company makes the representations and warranties set out in this paragraph 2(d) to the Mezzanine Security Agent and to each other Mezzanine Secured Party as at the date of this Accession Deed:

- (i) each/ Acceding Company is the sole legal and beneficial owner of all of the Security Assets identified against its name in schedule 2 (*Details of Security Assets*);
- (ii) the Charged Securities listed in part 2 of schedule 2 to the Accession Deed (*Details of Security Assets owned by the Acceding Companies*) constitute the entire share capital owned by each Acceding Company in the relevant company and constitute the entire share capital of each such company; and
- (iii) part 1 of schedule 2 (*Details of Security Assets owned by the Acceding Companies*) identifies all freehold and leasehold Real Property which is beneficially owned by each Acceding Company at the date of this Deed.

**(e) Consent**

Pursuant to clause 23.3 (*Accession Deed*) of the Mezzanine Debenture, the Parent (as agent for itself and the existing Chargors):

- (i) consents to the accession of each Acceding Company to the Mezzanine Debenture on the terms of this Accession Deed; and
- (ii) agrees that the Mezzanine Debenture shall, after the date of this Accession Deed, be read and construed as if each Acceding Company had been named in the Mezzanine Debenture as a Chargor.

**3. CONSTRUCTION OF MEZZANINE DEBENTURE**

This Accession Deed shall be read as one with the Mezzanine Debenture so that all references in the Mezzanine Debenture to "*this Deed*" and similar expressions shall include references to this Accession Deed.

**4. THIRD PARTY RIGHTS**

Save as expressly provided to the contrary in the Mezzanine Debenture, a person who is not a party to this Accession Deed has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce or enjoy the benefit of any term of this Accession Deed.

**5. NOTICE DETAILS**

Notice details for each Acceding Company are those identified with its name below.

**6. COUNTERPARTS**

This Accession Deed may be executed in any number of counterparts, and this has the same effect as if the signatures (and seals, if any) on the counterparts were on a single copy of this Accession Deed.

**7. GOVERNING LAW**

This Accession Deed and any non-contractual obligations arising out of or in connection with it shall be governed by English law.

**IN WITNESS** of which this Accession Deed has been duly executed by each Acceding Company and the Parent as a deed and duly executed by the Mezzanine Security Agent and has been delivered on the first date specified on page 1 of this Accession Deed by each Acceding Company and the Parent.

**SCHEDULE 1 TO THE ACCESSION DEED****The Acceding Companies**

| <b>Company name</b>                              | <b>Registered number</b> | <b>Registered office</b>                            |
|--------------------------------------------------|--------------------------|-----------------------------------------------------|
| Alpha FMC Group Holdings Limited                 | 08555831                 | 60 Gresham Street, London, United Kingdom, EC2V 7BB |
| Alpha FMC Group Limited                          | 08506571                 | 60 Gresham Street, London, United Kingdom, EC2V 7BB |
| Alpha Financial Markets Consulting Group Limited | 07160664                 | 60 Gresham Street, London, United Kingdom, EC2V 7BB |
| Alpha Financial Markets Consulting Limited       | 04710715                 | 60 Gresham Street, London, United Kingdom, EC2V 7BB |
| Glass Client Programs Ltd                        | 05305334                 | 60 Gresham Street, London, United Kingdom, EC2V 7BB |



**SCHEDULE 2 TO THE ACCESSION DEED****Details of Security Assets owned by the Acceding Companies****Part 1 - Real Property**

None at the date of this deed.

**Part 2 - Charged Securities**

| <b>Chargor</b>                                   | <b>Name of company in which shares are held</b>  | <b>Class of shares held</b>        | <b>Number of shares held</b> | <b>Issued share capital</b> |
|--------------------------------------------------|--------------------------------------------------|------------------------------------|------------------------------|-----------------------------|
| Alpha FMC Group Holdings Limited                 | Alpha FMC Group Limited                          | Ordinary Shares of £1.00           | 1                            | £1                          |
| Alpha FMC Group Limited                          | Alpha Financial Markets Consulting Group Limited | Ordinary Shares of £0.01 each      | 603,589,325                  | £6,035,893.25               |
|                                                  |                                                  | USA Ordinary Shares of \$0.10 each | 250,000                      | \$25,000                    |
| Alpha Financial Markets Consulting Group Limited | Alpha Financial Markets Consulting Limited       | Ordinary Shares of £1.00 each      | 275,000                      | £275,000                    |
| Alpha Financial Markets Consulting Group Limited | Glass Client Programs Ltd                        | Ordinary Shares of £0.10 each      | 1,312                        | £131.20                     |

**Part 3 - Charged Accounts**

| <b>Collection Accounts</b>                 |                       |                     |                          |
|--------------------------------------------|-----------------------|---------------------|--------------------------|
| <b>Account Holder</b>                      | <b>Account Number</b> | <b>Account Bank</b> | <b>Account sort code</b> |
| Alpha Financial Markets Consulting Limited | ██████████            | ██████              | ██████                   |
| Alpha Financial Markets Consulting Limited | ██████████            | ██████              | ██████                   |
| Alpha Financial Markets Consulting Limited | ██████████            | ██████              | ██████                   |

| Collection Accounts                              |                |              |                   |
|--------------------------------------------------|----------------|--------------|-------------------|
| Account Holder                                   | Account Number | Account Bank | Account sort code |
| Alpha Financial<br>Markets Consulting<br>Limited |                |              |                   |

## Part 4 - Intellectual Property

| Trade Mark                                                                                             | Application/<br>Registration<br>no. | Country         | Applicant/<br>owner                                 | Classes    | Filing<br>date | Registratio<br>n date |
|--------------------------------------------------------------------------------------------------------|-------------------------------------|-----------------|-----------------------------------------------------|------------|----------------|-----------------------|
|  alpha FMC            | 1023507                             | Europe          | Alpha Financial<br>Markets<br>Consulting<br>Limited | 9,35,36,42 | 17/08/<br>2009 | 17/08/2009            |
|  alpha FMC            | 4000450                             | USA             | Alpha Financial<br>Markets<br>Consulting<br>Limited | 9,35,36,42 | 17/08/<br>2009 | 26/07/2011            |
|  alpha FMC          | 1023507                             | Switzerla<br>nd | Alpha Financial<br>Markets<br>Consulting<br>Limited | 9,35,36,42 | 17/08/<br>2009 | 17/08/2009            |
|                     | 3109887                             | UK              | Alpha Financial<br>Markets<br>Consulting<br>Limited | 9,35,36,42 | 21/05/<br>2015 | 09/10/2015            |
|  Omega              | 1033354                             | Europe          | Alpha Financial<br>Markets<br>Consulting<br>Limited | 35         | 14/01/<br>2010 | 14/01/2010            |
|  Omega              | 1033354                             | Switzerla<br>nd | Alpha Financial<br>Markets<br>Consulting<br>Limited | 35         | 14/01/<br>2010 | 14/01/2010            |
|  alpha FMC          | 2427683                             | UK              | Alpha Financial<br>Markets<br>Consulting<br>Limited | 9,35,36,42 | 20/07/<br>2006 | 29/02/2008            |
|  Omega<br>Contracts | 3109879                             | UK              | Alpha Financial<br>Markets<br>Consulting<br>Limited | 35         | 21/05/<br>2015 | 30/10/2015            |

| Trade Mark                                                                        | Application/<br>registration<br>no. | Country | Applicant/<br>owner                                 | Classes | Filing<br>date | Registration<br>date |
|-----------------------------------------------------------------------------------|-------------------------------------|---------|-----------------------------------------------------|---------|----------------|----------------------|
|  | 2526234                             | UK      | Alpha Financial<br>Markets<br>Consulting<br>Limited | 35      | 16/09/<br>2009 | 15/01/2010           |
|  | 3885676                             | USA     | Alpha Financial<br>Markets<br>Consulting<br>Limited | 35      | 14/01/<br>2010 | 07/12/2010           |

### Part 5 - Material Contracts

None at the date of this Deed.

### Part 6 – Insurances

| Acceding Company                                 | Insurer | Policy number |
|--------------------------------------------------|---------|---------------|
| Alpha FMC Group Holdings Limited                 | Chubb   | [REDACTED]    |
| Alpha FMC Group Limited                          | Chubb   | [REDACTED]    |
| Alpha Financial Markets Consulting Group Limited | Chubb   | [REDACTED]    |
| Alpha Financial Markets Consulting Limited       | Chubb   | [REDACTED]    |
| Glass Client Programs Ltd                        | Chubb   | [REDACTED]    |
| Alpha FMC Group Holdings Limited                 | Chubb   | [REDACTED]    |
| Alpha FMC Group Limited                          | Chubb   | [REDACTED]    |
| Alpha Financial Markets Consulting Group Limited | Chubb   | [REDACTED]    |
| Alpha Financial Markets Consulting Limited       | Chubb   | [REDACTED]    |
| Glass Client Programs Ltd                        | Chubb   | [REDACTED]    |
| Alpha FMC Group Holdings Limited                 | Chubb   | [REDACTED]    |
| Alpha FMC Group Limited                          | Chubb   | [REDACTED]    |
| Alpha Financial Markets Consulting Group Limited | Chubb   | [REDACTED]    |

| Acceding Company                                 | Insurer            | Policy number |
|--------------------------------------------------|--------------------|---------------|
| Alpha Financial Markets Consulting Limited       | Chubb              | [REDACTED]    |
| Glass Client Programs Ltd                        | Chubb              | [REDACTED]    |
| Alpha FMC Group Holdings Limited                 | Ace European Group | [REDACTED]    |
| Alpha FMC Group Limited                          | Ace European Group | [REDACTED]    |
| Alpha Financial Markets Consulting Group Limited | Ace European Group | [REDACTED]    |
| Alpha Financial Markets Consulting Limited       | Ace European Group | [REDACTED]    |
| Glass Client Programs Ltd                        | Ace European Group | [REDACTED]    |

**EXECUTION PAGES OF THE ACCESSION DEED****THE ACCEDING COMPANIES**

Executed as a deed, but not delivered until the )  
first date specified on page 1, by **ALPHA FMC** )  
**GROUP HOLDINGS LIMITED** acting by: )

Director \_\_\_\_\_  
Witness signature \_\_\_\_\_  
Witness name: \_\_\_\_\_  
Witness address: \_\_\_\_\_

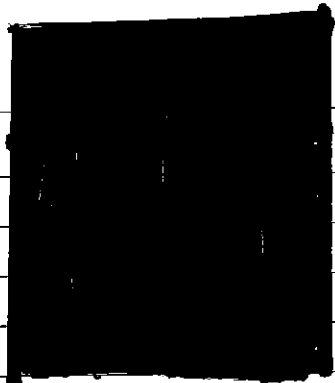


**Address:** 60 Gresham Street, London EC2V 7BB

**Attention:** Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the )  
first date specified on page 1, by **ALPHA FMC** )  
**GROUP LIMITED** acting by: )

Director \_\_\_\_\_  
Witness signature \_\_\_\_\_  
Witness name: \_\_\_\_\_  
Witness address: \_\_\_\_\_

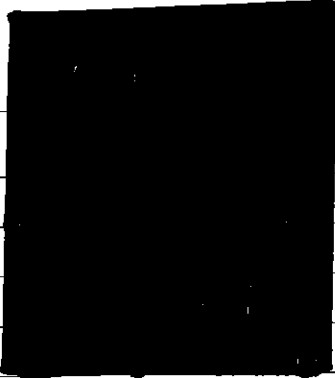


**Address:** 60 Gresham Street, London EC2V 7BB

**Attention:** Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the )  
first date specified on page 1, by ALPHA )  
**FINANCIAL MARKETS CONSULTING )**  
**GROUP LIMITED** acting by:

Director \_\_\_\_\_  
Witness signature \_\_\_\_\_  
Witness name: \_\_\_\_\_  
Witness address: \_\_\_\_\_

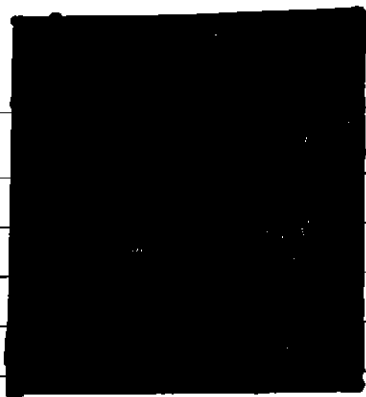


**Address:** 60 Gresham Street, London EC2V 7BB

**Attention:** Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the )  
first date specified on page 1, by ALPHA )  
**FINANCIAL MARKETS CONSULTING )**  
**LIMITED** acting by:

Director \_\_\_\_\_  
Witness signature \_\_\_\_\_  
Witness name: \_\_\_\_\_  
Witness address: \_\_\_\_\_

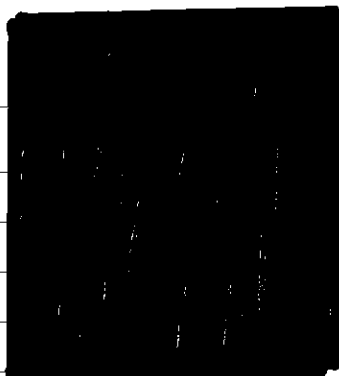


**Address:** 60 Gresham Street, London EC2V 7BB

**Attention:** Euan Fraser/ Nick Baker

Executed as a deed, but not delivered until the )  
first date specified on page 1, by GLASS )  
CLIENT PROGRAMS LTD acting by: )

Director \_\_\_\_\_  
Witness signature \_\_\_\_\_  
Witness name: \_\_\_\_\_  
Witness address: \_\_\_\_\_



**Address:** 60 Gresham Street, London EC2V 7BB

**Attention:** Euan Fraser/ Nick Baker

#### THE PARENT

Executed as a deed, but not delivered until the )  
first date specified on page 1, by CAELIUS )  
MIDCO 2 LIMITED acting by: )



Director \_\_\_\_\_  
Witness signature \_\_\_\_\_  
Witness name: \_\_\_\_\_  
Witness address: \_\_\_\_\_



**Address:** 60 Gresham Street, London EC2V 7BB

**Attention:** Euan Fraser/ Nick Baker

**THE MEZZANINE SECURITY AGENT**

Signed by Nigel Strachan, Director )  
for and on behalf of **BEECHBROOK** )  
**MEZZANINE II JERSEY LIMITED:** )

Signature

A large black rectangular redaction box covering the signature area.

**Address:**

**Facsimile No:**

**Attention:**